

3	25-01477200 <i>Pesner vs. Redhead</i>	Motion to Consolidate Plaintiff Gary Pesner’s motion to consolidate this action with <i>Adam Redhead v. Gary Pesner</i>, OCSC Case No. 30-2025-01477388 for all purposes is CONTINUED to _____ [30 days from 5/28/26]. On 2/26/26, the Court continued the hearing on the Motion to allow Plaintiff to comply with California Rules of Court, Rule 3.350(a)(2)(B). In an attempt to comply with Rule 3.350(a)(2)(B), Plaintiff has successfully served Restoration Heroes SPV, LLC and Restoration Heroes, Inc. but has been unsuccessful in serving Karel Taska. (Gonchegulian Decl., ¶ 4.) Plaintiff requests a 30-day continuance to effectuate service on Karel Taska which is granted. Plaintiff to give notice.
5	25-01504437 Brad Dean Sanders as Trustee of the Powell Family Trust vs. Alexander B. Sanders as Personal Representative of Estate of James Baron Sanders	Demurrer to Complaint Defendant Alexander B. Sanders, as personal representative of Estate of James B. Sanders’ demurrer to plaintiff Brad Dean Sanders, as trustee of The Powell Family Trust’s complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend. Defendant’s request for judicial notice In support of its demurrer, Defendant requests judicial notice of the following documents: - Exhibit A - Petition for Instructions filed with the Contra Costa Superior Court on May 17, 2024, Case No. 24-00848. - Exhibit B - Brad Dean Sander’s Creditor’s Claim filed with the Orange County Superior Court on Feb. 4, 2025, Case No. 30-2024-01402031-PR-LA-CMC. - Exhibit C - Herbert Rothman’s Creditor’s Claim a filed with the Orange County Superior Court on Sep. 5, 2024, Case No. 30-2024-01402031-PR-LA-CMC. Judicial notice may be taken of court records. (Cal. Evid. Code § 452, subd. (d).) The Court GRANTS Defendant’s request for judicial notice. Whether Plaintiff’s claims are time-barred “Upon a person’s death, Code of Civil Procedure section 366.2 ‘provides for an outside time limit of one year for filing any type of claim against a decedent.’” (<i>Estate of Holdaway</i> (2019) 40 Cal.App.5th 1049, 1053 [citation omitted].) Specifically, section 366.2, subdivision (a) provides: If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before